Nashik Municipal Corporation vs Fakir Mohammad Yakub Naginewale And Ors on 10 December, 2018

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
     APPELLATE SIDE CIVIL JURISDICTION

                WRIT PETITION NO. 5920 OF 2017

Nashik Municipal Corporation                        ....Petitioner
           V/S
Prabhakar Kisan Mali And Ors.                    ....Respondent
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WITH WRIT PETITION NO. 8292 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Shankar Dhondiram Khelukar ....Respondent WITH WRIT PETITION NO. 5152 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Sunil Manohar Bramhane And Ors. ....Respondent WITH WRIT PETITION NO. 5177 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Sahebrao Sada Desale And Ors. ....Respondent WITH WRIT PETITION NO. 5174 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Prabhakr Sukhdev Pavade And Ors. ....Respondent WITH WRIT PETITION NO. 5190 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Anjiram Madhav Kale And Ors. ....Respondent WITH WRIT PETITION NO. 5188 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Prakash Kisan Gaidhani And Ors. ....Respondent WITH WRIT PETITION NO. 5185 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Gangaram Vaman Nimbekar ....Respondent WITH WRIT PETITION NO. 5189 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ramesh Ramji Borisa And Ors. ....Respondent WITH WRIT PETITION NO. 5184 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Dattu Rangnath Kale And Ors. ....Respondent WITH WRIT PETITION NO. 5157 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Jagannath Rajaram Potinde And Ors. ....Respondent WITH WRIT PETITION NO. 5163 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Keru Dagdu Bhoir And Ors. ....Respondent WITH WRIT PETITION NO. 5167 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Popat Kisan Bhagare And Ors. ....Respondent WITH WRIT PETITION NO. 5165 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Shantaram Rambhau Bachhav And Ors. ....Respondent WITH WRIT PETITION NO. 5166 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ramesh Ramdas Bairagi And Ors. ....Respondent WITH WRIT PETITION NO. 5159 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ganpat Mahadu Dobade And Ors. ....Respondent WITH WRIT PETITION NO. 5162 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Dinkar Bhimrao Tuplondhe And Ors. ....Respondent WITH WRIT PETITION NO. 5160 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Nandkumar Lahanu Gorade And Ors. ....Respondent WITH WRIT PETITION NO. 5161 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Dada Vishwanath Wagh And Ors. ....Respondent WITH WRIT PETITION NO. 5179 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Popat Pandhari Kalunge And Ors. ....Respondent WITH WRIT PETITION NO. 5191 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Devidas Dattatray Ingale And Ors. ....Respondent WITH WRIT PETITION NO. 5186 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Chandrakant Ananda Pawar And Ors. ....Respondent WITH WRIT PETITION NO. 5173 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Rajendra Bhulan Chandliya And Ors. ....Respondent WITH WRIT PETITION NO.

5176 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Popat Baban Jachak And Ors. ....Respondent WITH WRIT PETITION NO. 5172 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Gulab Valu Pawar And Ors. ....Respondent WITH WRIT PETITION NO. 5171 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Nandkumar Sahadev Palange And Ors. ....Respondent WITH WRIT PETITION NO. 5192 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Balkrishna Gangadhar Halade And Ors. ....Respondent WITH WRIT PETITION NO. 5183 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Jagganath Rambhau Jhankar And Ors. ....Respondent WITH WRIT PETITION NO. 5193 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Popat Raosaheb Porje And Ors. ....Respondent WITH WRIT PETITION NO. 5168 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Sanjay Dashrath Raut And Ors. ....Respondent WITH WRIT PETITION NO. 5178 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Kasim Chandkhan Pathan And Ors. ....Respondent WITH WRIT PETITION NO. 5164 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Salim Hussain Maniyar And Ors. ....Respondent WITH WRIT PETITION NO. 5170 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ashok Dinkar Dalvi And Ors. ....Respondent WITH WRIT PETITION NO. 5169 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Sharad Digamber Bagul And Ors. ....Respondent WITH WRIT PETITION NO. 5175 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ramdas Yashwant Gode And Ors. ....Respondent WITH WRIT PETITION NO. 5153 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Dattatray Gulabrao Bairagi And Ors. ....Respondent WITH WRIT PETITION NO. 5154 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Suresh Devram Shingade And Ors. ....Respondent WITH WRIT PETITION NO. 5155 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Bhagwan Vishnu Ahire And Ors. ....Respondent WITH WRIT PETITION NO. 5156 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Murlidhar Pandit Gore And Ors. ....Respondent WITH WRIT PETITION NO. 5158 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Chandar Laxman Chaudhari And Ors. ....Respondent WITH WRIT PETITION NO. 5181 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Jagdish Mohansingh Pardeshi And Ors. ....Respondent WITH WRIT PETITION NO. 5187 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Shaikh Munaf Nasir Jamil And Ors. ....Respondent WITH WRIT PETITION NO. 5182 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Deepak Govind Mugdal And Ors. ....Respondent WITH WRIT PETITION NO. 5180 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Nivrutti Bandu Muradnar And Ors. ....Respondent WITH WRIT PETITION NO. 8288 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ramchandra Lahanu Dodake And Ors. ....Respondent WITH WRIT PETITION NO. 8291 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Mukund Rambhau Bhagwat And Ors. ....Respondent WITH WRIT PETITION NO. 8290 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Madhukar Manohar Hande And Ors. ....Respondent WITH WRIT PETITION NO. 8298 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Najmabi Mustak Shaikh And Ors. ....Respondent WITH WRIT PETITION NO. 8313 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Dhananjay Rasiklal Nandode And Ors. ....Respondent WITH WRIT PETITION NO. 5935 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Anil Sambhaji Kedare And Ors. ....Respondent WITH WRIT PETITION NO. 8287 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Umaji Ramu Pawar And Ors. ....Respondent WITH WRIT PETITION NO. 8296 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Subhash Popatrao Shinde And Ors. ....Respondent WITH WRIT PETITION NO. 8294 OF 2017 Nashik Municipal Corporation

....Petitioner V/S Nivrutti Sakharam Jadhav And Ors. ....Respondent WITH WRIT PETITION NO. 8289 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Shridhar Damodar Algat And Ors. ....Respondent WITH WRIT PETITION NO. 8293 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Prathmeshgir Gyangir Gosavi And Ors. ....Respondent WITH WRIT PETITION NO. 8295 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Jagannath Waghu Gangurde And Ors. ....Respondent WITH WRIT PETITION NO. 8299 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Tryambak Bhaurao Shinde And Ors. ....Respondent WITH WRIT PETITION NO. 8302 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Nivrutti Namdeo Donde And Ors. ....Respondent WITH WRIT PETITION NO. 5936 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ashok Hari Kale And Ors. ....Respondent WITH WRIT PETITION NO. 5937 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Vijay Rakhmaji Chaughule And Ors. ....Respondent WITH WRIT PETITION NO. 8308 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Balu Jayram Gaikwad And Ors. ....Respondent WITH WRIT PETITION NO. 8301 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Somnath Balaji Shinde And Ors. ....Respondent WITH WRIT PETITION NO. 8300 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ddaji Shankar Bachhav And Ors. ....Respondent WITH WRIT PETITION NO. 8297 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Madhav Karsan Maru And Ors. ....Respondent WITH WRIT PETITION NO. 5938 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Pandurang Mohan Gaidhani And Ors. ....Respondent WITH WRIT PETITION NO. 5930 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Laxman Pandharinath Thete And Ors. ....Respondent WITH WRIT PETITION NO. 5931 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Umarkhan Abbaskhan Pathan And Ors. ....Respondent WITH WRIT PETITION NO. 5932 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Rajendra Raghuveer Bagade And Ors. ....Respondent WITH WRIT PETITION NO. 5933 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Fakir Mohammad Yakub Naginewale And Ors . ....Respondent WITH WRIT PETITION NO. 5934 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Prakash Vasant Desale And Ors. ....Respondent WITH WRIT PETITION NO. 5921 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Smt. Shobha Balu Bhalerao And Ors. ....Respondent WITH WRIT PETITION NO. 5922 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Rajendra Gopinath Choudhary And Ors. ....Respondent WITH WRIT PETITION NO. 5923 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Bapur Rangnath Kotwal And Ors. ....Respondent WITH WRIT PETITION NO. 5924 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Ananda Damu Netawane And Ors. ....Respondent WITH WRIT PETITION NO. 5925 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Gangadhar Nivrutti Mali And Ors. ....Respondent WITH WRIT PETITION NO. 5926 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Balu Mukunda Bhadange And Ors. ....Respondent WITH WRIT PETITION NO. 5927 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Chandrakant Gojraji Satpute And Ors. ....Respondent WITH WRIT PETITION NO. 5928 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Maruti Krushna Thorat And Ors. ....Respondent WITH WRIT PETITION NO. 5929 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Babynaaz Jahir Ahmad Shaikh And Ors. ....Respondent WITH WRIT PETITION NO. 5939 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Chandrabhaga Laxman Barhe And Ors. ....Respondent WITH WRIT PETITION NO. 8656 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Balu Bhagvan Pawar And Ors. ....Respondent WITH WRIT PETITION NO. 8655 OF 2017 Nashik Municipal Corporation ....Petitioner V/S Vikram Narayan

Suryawanshi And Ors. ....Respondent None for Petitioner Mrs. Vaishali Nimbalkar, AGP for Respondent No. 2, Mr. Vishal Sharad Tambat, for Respondent No.1.

CORAM : SMT. DR. SHALINI PHANSALKAR-JOSHI, J DATE : 10th December, 2018 P.C. :

> At the request of learned advocate for the Respondent No. 1, Stand over to 18/12/2018.
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> (FOR REGISTRAR JUDICIAL - I)